

Brijraj Sharma v. State of U.P. & Others

High Court of Judicature at Allahabad · Division Bench · 7 April 2016 · Criminal Misc. Writ Petition No. 15159 of 2015 · **The writ petition to quash the FIR (Case Crime No. 0535 of 2015 under Section 135, Electricity Act, 2003) was rejected and the interim stay discharged: on the petitioner's own admission that an office was constructed within the apartment premises, the domestic (LMV-1) connection of less than 50 KW was used, in part, for a non-domestic purpose, attracting the higher LMV-2 tariff on the entire energy, so it could not be said that no offence under Section 135 was made out; the alleged offence was, in any event, compoundable.**

Source file: CRLP(A)_15159_2015.pdf

HEADNOTE

An FIR under Section 135 of the Electricity Act, 2003 alleged that the petitioner's domestic (LMV-1) electricity connection was being used for a 'site office'. The petitioner sought to quash the FIR, contending that the office inside the boundary wall of the apartments was only for maintaining the security of the society and its residents and was therefore a domestic use, so no offence was made out. Examining Rate Schedule LMV-1, the Division Bench held that for a connection below 50 KW, LMV-1 clause 1(b)(ii) provides that, except as specified in Regulation 3.3(e) of the U.P. Electricity Supply Code, 2005, if any portion of the load is used for conduct of business for non-domestic purposes, the entire energy consumed is charged at the higher rate schedule (LMV-2). Since the petitioner admitted (in para 13 of the writ petition) that an office had been constructed within the premises, and the FIR alleged it was a site office, the nature of the office activity could not be assumed to be domestic; the FIR allegation was not without foundation, clause 1(b)(ii) was attracted, and it could not be said that no offence under Section 135 was made out. No case for interference was shown, and the offence was in any event compoundable; the writ petition was rejected and the interim stay discharged.

FACTUAL SUMMARY

An FIR dated 03.06.2015 (Case Crime No. 0535 of 2015, Police Station Vrindavan, District Mathura) was registered against the petitioner Brijraj Sharma under Section 135 of the Electricity Act, 2003, alleging that a connection sanctioned for domestic purposes (tariff LMV-1) was being used for a purpose other than that for which it was granted, namely as a site office within Brijdhan Apartments. The petitioner filed a Criminal Misc. Writ Petition to quash the FIR, contending that the office was maintained only for the security of the housing society and its residents and hence for a domestic purpose, so no offence under Section 135(e) was made out. By interim order dated 24.06.2015 a Division Bench, expressing a prima facie view that the use was not commercial, stayed further proceedings on the FIR. After several adjournments, the matter was finally heard on 07.04.2016 by a Division Bench of Amreshwar Pratap Sahi and Pramod Kumar Srivastava, JJ. The petitioner admitted, in paragraph 13 of the writ petition, that an office had been constructed inside the boundary wall of the apartments, while maintaining that it was used only for stationing security personnel.

REUSABLE CONSTRUCTIONS

1. Under Rate Schedule LMV-1 (Domestic Light, Fan & Power), for a connection of less than 50 KW, if any portion of the load is utilized for conduct of business for non-domestic purposes then the entire energy consumed is charged at the higher rate schedule (LMV-2), save as specified in Regulation 3.3(e) of the U.P. Electricity Supply Code, 2005. [order of 7.4.2016](#)
2. Where the consumer admits construction of an office within domestic premises, the nature of the office activity cannot be assumed to be domestic; whether the use is domestic or non-domestic is a disputed question of fact, and an FIR under Section 135 alleging non-domestic use of a domestic connection cannot be said to be without foundation. [order of 7.4.2016](#)
3. An FIR under Section 135 of the Electricity Act, 2003 will not be quashed at the threshold where, on the admitted facts, misuse of the connection for a non-domestic purpose is prima facie made out; the consumer's factual defence must be established at trial, the offence being in any event compoundable. [order of 7.4.2016](#)

FIR under Section 135 not quashed where non-domestic use of a domestic connection is prima facie made out

QUESTION

Should an FIR under Section 135 (alleging that a domestic LMV-1 connection was used for a non-domestic 'site office') be quashed on the petitioner's plea that the office was only for the society's security and hence a domestic use?

HOLDING

No. The petitioner admitted (in paragraph 13 of the writ petition) that an office had been constructed within the boundary wall of the apartments, and the FIR alleged it was a site office. The nature of the activity in the office could not be assumed to be domestic, nor could the premises be said to be used for a domestic purpose, so the FIR allegation was not without foundation. Read with the LMV-1 tariff (under which partial non-domestic use of a below-50 KW domestic connection attracts the higher LMV-2 rate on the entire energy), it could not be said that no offence under Section 135 was made out; no case for interference was shown, and the offence was in any event compoundable. The writ petition was rejected and the interim stay discharged. **order of 7.4.2016**

EVIDENCE *"The allegation therefore in the FIR cannot be said to be without foundation."* **order of 7.4.2016**

EVIDENCE *"it cannot be said that no offence is made out. In view of the aforesaid, no case is made out for interference."* **order of 7.4.2016**

EVIDENCE *"The writ petition stands rejected. Interim order stands discharged."* **order of 7.4.2016**

FLAG Source is an order-sheet across several dates (24.6.2015-7.4.2016); not paginated, so pins reference the order dates. The reasoned decision is the order of 7.4.2016 by Amreshwar Pratap Sahi and Pramod Kumar Srivastava, JJ.; the interim stay (24.6.2015) was granted by a different Bench.

INTERPLAY · RATE-SCHEDULE-UP::LMV-1

RATIO

Partial non-domestic use of a below-50 KW LMV-1 domestic connection attracts the higher LMV-2 tariff on the entire energy

QUESTION

Under the LMV-1 tariff, what is the consequence where part of the load of a domestic connection below 50 KW is used for non-domestic business purposes?

HOLDING

The entire energy consumed is charged at the higher rate schedule (LMV-2), not LMV-1. LMV-1 clause 1(b)(ii) provides that, for a connection below 50 KW, except as specified in Regulation 3.3(e) of the Code, if any portion of the load is utilized for conduct of business for non-domestic purposes, the entire energy consumed is charged under the higher rate schedule. As the petitioner's connection was below 50 KW and part of the premises was used as an office, clause 1(b)(ii) was attracted and the energy fell to be charged at LMV-2, not LMV-1. **order of 7.4.2016**

EVIDENCE *"if any portion of the load is utilized for conduct of business for non-domestic purposes then the entire energy consumed shall be charged under the rate schedule of higher charge"* **order of 7.4.2016**

EVIDENCE *"the entire energy consumed would be at the rate schedule of higher charge, namely, that of LMV - 2 and not LMV -1."* **order of 7.4.2016**

PRINCIPLE TAGS

fir-under-s135-not-quashed-where-misuse-prima-facie-made-out On the admitted construction of an office within domestic premises and the FIR's allegation of a site office, misuse of the LMV-1 connection was prima facie made out and the FIR was not quashed. **order of 7.4.2016**

partial-non-domestic-use-of-domestic-connection-attracts-higher-tariff LMV-1 clause 1(b)(ii) was attracted for the below-50 KW connection, so the entire energy consumed fell to be charged at the higher LMV-2 rate, not LMV-1. **order of 7.4.2016**

domestic-vs-non-domestic-use-is-a-disputed-question-of-fact Whether the office was used only for the society's security (domestic) or for a non-domestic purpose was a disputed factual question to be established at trial, not a ground to quash the FIR. **order of 7.4.2016**

NOT DECIDED — WHETHER THE OFFICE WITHIN THE PREMISES WAS IN FACT USED ONLY FOR THE SOCIETY'S SECURITY (A DOMESTIC PURPOSE) OR FOR A NON-DOMESTIC/COMMERCIAL PURPOSE

Left to be established at trial; the disputed factual defence could not be adjudicated in the quashing jurisdiction, and the offence was in any event compoundable. [order of 7.4.2016](#)

RELATED CASES — SEE ALSO

SCJ-081 — Mobin Ahamad (2015) — an FIR under Section 135 will not be quashed where it discloses a cognizable offence of theft of electricity.

SCJ-133 — Tehsil Bar Association (2023) — tariff classification of use (Reg 3.3(e)): what counts as a commercial/non-domestic activity for tariff purposes.

SCJ-166 — Hyundai Engineering (2013) — classification under a U.P. rate schedule turns on the actual use of the connection (LMV-9 temporary supply).

SCJ-102 — Pawan Kumar Laur (2011) — competence of an authorised licensee officer to lodge an FIR for theft of electricity under Section 135.

SCJ-2640 · Brijraj Sharma v. State of U.P. & Others · · Supply Code Jurisprudence

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.